

**Superior Court of the State of California
County of Orange**

TENTATIVE RULINGS FOR DEPARTMENT C21

JUDGE CRAIG E. ARTHUR

Date: June 12, 2026

The court will endeavor to post tentative rulings on the Court's website by 3 p.m. on the day before the Law and Motion Calendar. However, ongoing proceedings may prevent posting by that time. Please do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is typically heard on Fridays at 10 a.m., unless otherwise noted. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings>, and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

	Case Name	Tentative
50	<i>Clear Vision Financial LLC vs. Consumer Legal Group, P.C.</i>	Defendants Consumer Legal Group, P.C. and Solomon Feig’ Motions to Deem Requests for Admissions, Sets One, Admitted, and compel initial responses to Special Interrogatories, Requests for Production of Documents, and Form Interrogatories, Sets One, from Plaintiffs Clear Vision Financial LLC and Perfect Financial LLC appear to be moot other than sanctions. Plaintiffs responded to the discovery on May 27, 2026. (McGee Decl., ¶14, Exs. A-D.) Ignoring the objections, the Court finds that the substantive answers are more complete and straightforward than not. Defendants argue that the presence of objections renders the responses not in substantial compliance because objections were waived. But the assertion of waived objections does not necessarily prevent “substantial compliance. (See e.g. Katayama v. Continental Investment Group (2024) 105 Cal.App.5th 898, 909.) The Court has reviewed the responses and finds them in substantial compliance. The Court notes that a motion for relief from waiver of objections is set for hearing on 8/28/26 and will resolve the issue of whether the objections are proper or further responses need be served. Sanctions, however, remain at issue. If a party fails to serve a timely response, and the propounding party moves for and obtains a court order compelling a response, the trial court must impose a monetary sanction against the delinquent party unless that party acted with “substantial justification” or the sanction would otherwise be

		unjust. (See e.g. CCP §§ 2030.290, subd. (c); 2031.300, subd. (c); Rules of Court, rule 3.1348(a), “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Here, sanctions are warranted. The Court orders Plaintiffs and their Counsel of record McGee & Associates to pay reasonable attorney’s fees in the amount of \$2,660 plus \$120 in filing fees for a total of \$2,780 within 30 days. Defendants are ordered to serve notice of this Order. In light of the Court’s ruling, Plaintiffs’ ex parte application filed on June 8, 2026, to continue the hearing on Defendants’ motion to compel is denied as moot. All future dates remain.
51	<i>Farah vs. Top Hill, LLC</i>	Plaintiff Fadi Farah’s general and special demurrers to Defendants Top Hill, LLC’s, Lucky 1, LLC’s, Adnan Elias’, Alaa Elias’ and Inad Elias’ First Amended Answer are overruled. An answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant and (2) a statement of any new matter constituting a defense. (Code Civ. Proc. § 431.30(b).) The same pleading of ultimate facts rather than legal conclusions is required in pleading an answer as in pleading a complaint. See <i>FPI Development, Inc. v. Nakashimi</i> (1991) 231 Cal. App. 3d 367, 384 (stating rule that answer

must allege facts “averred as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint.”).

A plaintiff can demur to an answer on the grounds that, inter alia, the answer does not state facts sufficient to constitute a defense. (Code Civ. Proc. § 430.20(a).) “Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action.” (South Shore Land Co. v. Petersen (1964) 226 Cal. App. 2d 725, 732.) A determination of the sufficiency of an answer requires an examination of the complaint because the adequacy of the answer is with reference to the complaint it purports to answer. (Id. at 733.)

Here, Plaintiff generally demurs to Defendants’ 1st and 3rd - 9th affirmative defenses in their First Amended Answer.

The Court finds that Defendants adequately plead the ultimate facts to support these affirmative defenses.

In addition, with respect to Plaintiff’s special demurrer, Plaintiff has not shown that the affirmative defenses are so confusingly pled that they cannot determine what issues Defendants are raising. (See Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

Plaintiff’s general and special demurrers are overruled.

Defendants shall give notice.

52	<i>Fillman vs. Hodges</i>	(1) RULING ON DEMURRER Defendants George Thomas Hodges, Jr.'s and Jane Wong's general demurrer to Plaintiffs' First Amended Complaint ("FAC") is sustained as to the 2nd and 5th causes of action with 15 days leave to amend, and overruled as to the 1st, 3rd, 4th and 6th causes of action. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (Lambert v. Carneghi (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the "four corners" of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (Leek v. Cooper (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) <i>1st cause of action for invasion of privacy</i> The elements of a common law invasion of privacy claim are intrusion into a private place, conversation, or matter, in a manner highly offensive to a reasonable person. (Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.)
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Plaintiffs allege that they had a reasonable expectation of privacy in their enclosed pool area, balconies, and exterior stairways, that Defendants intentionally installed and directed surveillance cameras with audio recording capability at these private areas, that said intrusion was highly offensive, and that as a result, Plaintiffs suffered severe emotional distress, among other things. (FAC, ¶¶ 29-32.)

At the pleadings stage, Plaintiffs' allegations are sufficient. Plaintiffs are not required to plead this cause of action with specificity. Plaintiffs here allege the basic facts to support this claim; their allegations are to be taken as true when deciding the demurrer; thus, the demurrer is overruled to this cause of action.

2nd cause of action for harassment, Civ. Code, § 1708.7

Civ. Code, § 1708.7 provides that in order to state a claim for harassment under this section, the plaintiffs must show either that Defendants violated a restraining order or that Defendants "as a part of the pattern of conduct specified in paragraph (1), made a credible threat with either (i) the intent to place the plaintiff in reasonable fear for his or her safety, or the safety of an immediate family member, or (ii) reckless disregard for the safety of the plaintiff or that of an immediate family member...." (Subd. (a)(3).)

Plaintiffs fail to allege conduct of this nature. As a result, the demurrer to the 2nd cause of action is sustained with 15 days leave to amend.

3rd cause of action for trespass

"The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the

defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm.” (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 262.)

Plaintiffs allege that on August 11, 2023, Defendants intentionally and without consent entered Plaintiffs’ Property, that they had no legal right or privilege to enter or interfere with utilities servicing the Property, and that Plaintiffs were harmed by the trespass, including loss of water service and emotional distress. (FAC, ¶¶ 38-40.)

Defendants argue that Plaintiffs fail to plead “specific manner of entry by each Defendant, the basis for attributing any plumber’s conduct to Defendants, or the precise acts that allegedly constituted an unlawful entry as opposed to a dispute regarding property access or utilities.” (Demurrer at pg. 10.)

These specific allegations are not required to state a claim for trespass. Plaintiff alleges facts to support each of the elements; thus, the demurrer is overruled to the 3rd cause of action.

4th cause of action for elder abuse

Welfare & Institutions Code section 15610.07 defines abuse of an elder or dependent adult as:

(1) Physical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering.

(2) The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering.

(3) Financial abuse, as defined in Section 15610.30.

Within this cause of action, Plaintiffs allege, among other things, that Defendants subjected them to “severe mental suffering through intimidation, harassment, covert surveillance with audio recording capability, and unauthorized interference with their home.”

The Court in *Darrin v. Miller* (2019) 32 Cal.App.5th 450, 456, held that “‘treatment’ that is neither physical abuse, neglect, abandonment, isolation nor abduction, can constitute elder abuse if the treatment results in ‘physical harm or pain or mental suffering’ even if the alleged abuser has no responsibility to care for the elder and no control of the elder's property.”

Plaintiffs allege mental suffering, based on Defendants’ “treatment” in their surveillance and audio-recording. The basic facts are pled. Therefore, the demurrer is overruled to this cause of action.

5th cause of action for financial elder abuse

Pursuant to Welfare & Institutions Code §15610.30 “financial elder abuse” occurs when a person or entity “[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.” (Subd. (a)(1)). In addition, to impose liability under this section, Plaintiff must establish that “‘the person or entity knew or should have known that this conduct is likely to be harmful to the elder ... adult.” (*Paslay v. State Farm General Ins. Co.* (2016) 248 Cal.App.4th 639, 657 [citing Welfare & Institutions Code § 15610.30(b)].)

Plaintiffs do not allege any sort of “taking” resulting in financial harm. Therefore, Defendants’ demurrer to the fifth cause of action is sustained with leave to amend.

6th cause of action for declaratory and injunctive relief

The elements of declaratory relief are (1) a person interested under a written instrument, (2) actual controversy, and (3) a request for a declaration of rights and duties. (Code Civ. Proc., § 1060; Cardellini v. Casey (1986) 181 Cal.App.3d 389, 395.)

Defendants argue that this cause of action is wholly derivative of Plaintiffs’ other claims. Because Defendants contend that those other claims are not sufficiently pled, their demurrer to this cause of action should be sustained as well.

Given that the Court overrules Defendants’ demurrer to the 1st, 3rd and 4th causes of action, Defendants’ argument fails. The demurrer is also therefore overruled as to the 6th cause of action.

Special Demurrer

The special demurrer is overruled. The FAC is not so confusing that Defendants cannot determine what the claims are and how to respond. (See Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139.)

(2) RULING ON MOTION TO STRIKE

Defendants George Thomas Hodges, Jr.’s and Jane Wong’s motion to strike portions of Plaintiffs’ First Amended Complaint (“FAC”) is granted in part and denied in part as set forth below.

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).) A motion to strike can also strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (Perkins v. Superior Court (1981) 117 Cal.App. 3d 1, 6.)

Punitive Damages

Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. “Malice” means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others. (Civ. Code § 3294(c)(1).)

Plaintiffs allege one instance of trespass involving a plumber and shutting off the water supply, and Defendants’ installation of surveillance cameras directed towards Plaintiffs’ property. (FAC, ¶¶ 19-22.) Plaintiffs claim that the reason for this is “to force Plaintiffs to authorize further intrusions onto Plaintiffs’ Property to promote Defendants’ goal of building an AUD[sic] type structure on Defendants Property...” (FAC, ¶ 26.)

This conduct as pled does not rise to the level of malice, as defined in Civil Code, § 3294(c).

The motion to strike the punitive damages claims is therefore granted with 15 days leave to amend.

Attorney Fees

Attorney's fees are recoverable by a party only if specifically provided for by a statute or law, or if authorized by an express agreement between the parties. (Code Civ. Proc., §§ 1021, 1033.5, subd. (a)(10)(A)-(C); Civ. Code, § 1717; see also *Nasser v. Superior Court* (1984) 156 Cal.App.3d 52, 56 ("Absent an agreement or statute, a party is generally precluded from recovery of attorney fees."); *Reynolds Metals Co. v. Alperson* (1979) 25 Cal.3d 124, 127.)

Plaintiffs cite to Welf. & Inst. Code, § 15657 to support their claim for attorney fees, which states that attorney fees shall be awarded if it is proven that the defendant is liable for physical abuse, neglect or abandonment.

Plaintiffs do not allege facts to support physical abuse, neglect or abandonment.

Therefore, the Court grants the motion to strike the claim for attorney fees with 15 days leave to amend.

Elder Abuse / Financial Elder Abuse Allegations

Defendants move to strike paragraphs 42 and 43 of the fourth cause of action and paragraphs 45 and 46 of the fifth cause of action.

The motion to strike is denied as to paragraph 42. Defendants do not show that this is not a proper

		allegation to support Plaintiffs’ elder abuse claim. The motion is granted as to paragraph 43 as this goes to Plaintiffs’ punitive damages allegations which are not supported by the facts. Defendants’ motion is moot as to paragraphs 45 and 46 given that the Court sustains the demurrer to the fifth cause of action. <i>Injunctive and Declaratory Relief Allegations</i> Defendants restate their arguments made in the demurrer, contending that these allegations should be stricken because they are derivative of Plaintiffs’ other claims. The motion to strike is denied as to these allegations, given that Plaintiffs plead sufficient facts to support their trespass and elder abuse claims. Defendants shall give notice of both rulings.
53	<i>Ignatius vs. Ignatius</i>	The Court denies Defendants Stephen Ignatius, Monica Solorzano, Thomas Rieser, Kirsten Rieser, Villela, Inc.’s motion for attorney’s fees and costs under Code of Civil Procedure section 425.16 from Plaintiff Christina M. Ignatius. The case has a significant and unique procedural history. Moving Defendants brought an initial Anti-SLAPP Motion that was granted in large part on April 1, 2025. (ROA 395, 4/1/2025 Minute Order.) On that same date, Plaintiff was ordered to file and serve a new first amended complaint. (ROA 395, 4/1/2025 Minute Order.) The Court specifically admonished Plaintiff: This first amended complaint must be in compliance with the instant ruling. Plaintiff

shall not include any of the stricken claims or stricken allegations against the Moving Defendants. Plaintiff is reminded that after a ruling on a demurrer, she cannot add additional causes of action or new parties without first seeking and obtaining leave from Court with a noticed motion. (See Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023 [ruling that adding new cause of action after demurrer is improper]; People v. Clausen (1967) 248 Cal. App. 2d 770, 785-876 [finding that adding new party after demurrer is improper]; Cal. Rules of Court, rule 3.1324.)

(ROA 395, 4/1/2025 Minute Order.)

On May 1, 2025, Plaintiff filed her First Amended Complaint (FAC). (ROA 448.) But the FAC failed to comply with the April 1, 2025, ruling because Plaintiff included allegations that were found in violation of Section 425.16.

Moving Defendants filed two Motions to address the improper allegations included in the FAC: (1) a regular motion to strike under Code of Civil Procedure § 436 to strike the improperly included allegations that were already addressed in the first Anti-SLAPP motion (ROA 519); and (2) a new Anti-SLAPP Motion under Code of Civil Procedure § 425.16 (ROA 538).

The Court granted the regular motion to strike on September 24, 2025. (ROA 626, "...the motion to strike portions of the FAC as set forth on pages 2-11 of the motion to strike (ROA 519) is granted without leave to amend".)

Pending at that time was the new Anti-SLAPP motion directed to the FAC. (See ROA 538.) By the time that motion came for hearing, it was moot due

to the ruling on the motion to strike. (See ROA 680.)

Moving Defendants now want \$24,652.50 in attorney fees and \$60 in costs for having to file the second Anti-SLAPP Motion.

The Court notes that it already awarded Moving Defendants \$38,120 in reasonable attorney's fees and \$271.35 in costs for prevailing on the initial Anti-SLAPP motion directed to the Complaint. (ROA 648.)

Code of Civil Procedure section 425.16 provides that a prevailing defendant on a special motion to strike is entitled to recover reasonable attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c); City of Los Angeles v. Animal Defense League (2006) 135 Cal.App.4th 606, 627.) When a plaintiff voluntarily dismisses the action after the special motion to strike has been filed and before the trial court hears or rules on the motion, the court continues to have jurisdiction over the case, for the limited purpose of ruling on a defendant's motion for attorney fees and costs. (Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869, 879, 881.)

However, there was no voluntary dismissal; the second Anti-SLAPP was duplicative of the first.

Moving Defendants cite Pfeiffer Venice Properties v. Bernard (2002) 101 Cal.App.4th 211 to argue that they are entitled to attorney's fees for their second motion directed to the FAC. But Pfeiffer dealt with a dismissal of the moving party/complaint prior to the hearing on the anti-SLAPP. These are not facts similar to the instant case.

Moving Defendants provide no support for their contention that they are entitled to more attorney's

		fees for enforcing a prior court order. Plaintiff included the stricken language in the FAC, there was no new analysis or adjudication needed. Thus, this Motion is denied. Moving Defendants are ordered to serve notice.
54	<i>Off calendar</i>	
55	<i>Neach vs. Pacheco</i>	The motion by Plaintiff/Cross-Defendant Brian Neach (“Neach”) for an order granting summary judgment against the Cross-Complaint filed by Cross-Complainant Rodric Anthony Pacheco (“Pacheco”) is DENIED. Neach’s alternative motion for summary adjudication of four issues is also DENIED. As an initial matter, the Court notes Neach did not identify each issue for summary adjudication in his Separate Statement. (Neach’s Separate Statement, ROA No. 223.) “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Ct., Rule 3.1350(b).) Neach’s notice states Neach is seeking summary adjudication on each of Pacheco’s four causes of action on the ground that they are each barred by the applicable statute of limitations. (Notice, 1:9-19.) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion. (Cal. Rules of Ct., Rule 3.1350(d)(1)(B).)

	Neach’s Separate Statement does not identify any issues for summary adjudication. (See, Separate Statement, ROA No. 223.) The Court has discretion to deny a motion for summary judgment when the moving party fails to comply with the separate statement requirement. (Truong v. Glasser (2009) 181 Cal.App.4th 102, 118 [“the court’s power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory.”].) “The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. ‘Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are disputed.’ (United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 335 [282 Cal.Rptr. 368].)” (Kojababian v. Genuine Home Loans, Inc. (2009) 174 Cal.App.4th 408, 415-416, citing Whitehead v. Habig (2008) 163 Cal.App.4th 896, 902.) The statute governing the format of summary judgment moving papers is permissive, not mandatory. (Brown v. El Dorado Union High School Dist. (2022) 76 Cal.App.5th 1003, 1019.) Facts stated elsewhere, other than in the separate statement, need not be considered by the court. (Id., citing Fleet v. CBS, Inc. (1996) 50 Cal.App.4th 1911, 1916, fn. 3.) Pacheco did not oppose Neach’s alternative motion for summary adjudication on this ground. The Court exercises its discretion to consider the
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merits of Neach’s motion for summary adjudication despite this procedural deficiency.

General legal authority

In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co. (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (Ibid.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (Clark v. Baxter Healthcare Corp. (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims

for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (Brantley v. Pisaro (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at pp. 854-855; Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see Sheiding v. Dinwiddie Constr. Co. (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of

action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont Med. Center (2004) 117 Cal.App.4th 493, 510.)

Motion for summary judgment

Neach did not address Pacheco’s allegation that Neach concealed the nature of Neach’s prior relationship with Magnuson, which Pacheco alleged constituted a breach of Neach’s fiduciary duty and was also a basis for the second cause of action for fraud-concealment. (Cross-Complaint, ¶¶ 80 and 87.) Because Neach did not address this allegation in Pacheco’s cross-complaint, Neach did not meet his initial burden to show Pacheco’s first cause of action and second cause of action have no merit. (Hedayati v. Interinsurance Exchange of the Automobile Club (2021) 67 Cal.App.5th 833, 846 [“If the defendant does not address an issue in a motion for summary judgment that has been raised in the plaintiff’s complaint, it fails to meet its initial burden to show the plaintiff’s action has no merit.”]) Accordingly, for this reason and the reasons set forth below, Neach’s motion for summary judgment is denied.

Alternative motion for summary adjudication

Issue 1: Cross-Complainant’s First Cause of Action for Breach of Fiduciary Duty has no merit because it is barred by the applicable statute of limitations.

Although the CCP does not specify a statute of limitations for breach of fiduciary duty, when the

gravamen of the claim is based on fraud, CCP section 338, subdivision (d)'s three-year statute of limitations applies to a claim for breach of fiduciary duty. (Thomson v. Canyon (2011) 198 Cal.App.4th 594, 606–607.) The parties do not dispute Pacheco's first cause of action is governed by the 3-year statute of limitations in CCP section 338, subdivision (d).

A cause of action does not accrue “until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338, subd. (d).) A cause of action under the discovery rule accrues when a plaintiff has actual or inquiry notice. (Krolikowski v. San Diego City Employees' Retirement System (2018) 24 Cal.App.5th 537, 561; see Mangini v. Aerojet-General Corp. (1991) 230 Cal.App.3d 1125, 1149-1150 [“The limitations period begins once the plaintiff has notice or information of circumstances to put a reasonable person on inquiry...Subjective suspicion is not required. If a person becomes aware of facts which would make a reasonably prudent person suspicious, he or she has a duty to investigate further and is charged with knowledge of matters which would have been revealed by such an investigation.”].) “When inquiry notice applies, ‘if [a party] became aware of facts which would make a reasonably prudent person suspicious, [the party] had a duty to investigate further, and [is] charged with knowledge of matters which would have been revealed by such an investigation.’” (Krolikowski, 24 Cal.App.5th at 562.)

Neach did not meet his initial burden to show Pacheco's first cause of action for breach of fiduciary duty is barred by the 3-year statute of limitations. Pacheco alleges Neach breached his fiduciary duties by: (1) abusing alcohol while serving as managing director, licensed attorney,

and law firm partner; (2) convincing Pacheco to hire Magnuson without disclosing his prior relationship with Magnuson; and (3) misallocating the Law Firm's profits. (Cross-Complaint, ¶ 80.) Neach's separate statement did not show when Pacheco discovered Neach's prior relationship with Magnuson. (See, Neach Separate Statement.) The Golden Rule of Summary Adjudication requires all material facts be set forth in the separate statement – "if it is not set forth in the separate statement, it does not exist." (United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 337.)

In addition, although Neach showed Pacheco was aware of Neach misplacing the check, that is only one instance in which Pacheco alleged Neach was intoxicated. (Neach Material Fact ["NMF"] No. 12; Cross-Complaint, ¶ 25.) The one incident would not put a reasonable partner on inquiry notice that Neach had a drinking problem. In addition, Neach's evidence in support of NMF number 12 expressly states he was not inebriated. (NMF No. 12; Neach Decl., ¶ 22.) No material fact in the separate statement shows when Pacheco discovered any other instance of Neach's intoxication affecting his ability to competently perform or stay awake. Neach's separate statement also did not show Pacheco was on inquiry notice of Neach allegedly improperly managing the Law Firm's finances from the moment Neach sent Pacheco a spreadsheet showing how compensation was calculated, or by the time an outside accountant was hired to perform the calculation. (NMF No. 5, 6, and 8.) Even if Icona, the outside accountant, was preparing the incentive compensation, Neach did not show Icona was allocating the expenses or saw how the Law Firm's expenses were allocated. Neach's spreadsheets did not show how expenses were allocated. (Neach Decl., Exhibit D.) In addition, Neach's declaration expressly states the

incentive compensation calculation “did not involve any kind of ‘allocation’ of expenses.” (Id., ¶ 7, 15, and 17; Duffey v. Tender Heart Home Care Agency, LLC (2019) 31 Cal.App.5th 232, 241, fn. 6 [noting that the moving party's evidence alone may establish a triable issue of fact].)

Because Neach did not meet his initial burden, the burden does not shift to Pacheco to raise a triable issue of material fact. (Consumer Cause, Inc. v. SmileCare, 91 Cal.App.4th at 468.)

Even if Neach met his initial burden, Pacheco raised a triable issue of material fact as to whether Neach had any involvement with the calculation of incentive compensation other than reviewing the calculation. (NMF No. 8; Pacheco Decl., ¶¶ 30 and 31.)

Accordingly, the motion for summary adjudication is denied.

Issue 2: Cross-Complainant’s Second Cause of Action for Fraud—Concealment has no merit because it is barred by the three-year statute of limitations.

There is no dispute the 3-year statute of limitations set forth in CCP section 338, subdivision (d) applies to this cause of action.

Pacheco’s second cause of action for fraud – concealment alleges Neach concealed his prior relationship with Magnuson and concealed the manner in which he handled the Law Firm’s finances, specifically the allocation of the Law Firm’s expenses to each partner. (Cross-Complaint, ¶¶ 86, 87, 90, and 91.) As discussed above, Neach did not address when Pacheco discovered Magnuson and Neach’s prior relationship and did not show this cause of action on this ground is time barred. In addition, Neach did not show the cause

	of action based on concealment of the Law Firm's finances is time barred. Even if Neach met his initial burden, Pacheco raised a triable issue of material fact as to whether Neach had any involvement with the calculation of incentive compensation other than reviewing the calculation after Icona took over calculating the incentive compensation. (NMF No. 8; Pacheco Decl., ¶¶ 30 and 31.) Accordingly, summary adjudication is denied. Issue 3: Cross-Complainant's Third Cause of Action for Conversion has no merit because it is barred by the three-year statute of limitations. There is no dispute Pacheco's third cause of action for conversion is governed by the 3-year statute of limitations set forth in Code of Civil Procedure section 338, subdivision (c)(2). Pacheco's third cause of action for conversion is based on Neach's allegedly improper allocation of the Law Firm's expenses. (Cross-Complaint, ¶¶ 98-102.) Neach did not show the cause of action is time barred. As discussed above, Neach presents no material fact showing when Pacheco knew or should have known about how the Law Firm's expenses were allocated. Even if Neach met his initial burden, Pacheco raised a triable issue of material fact as to whether Neach had any involvement with the calculation of incentive compensation other than reviewing the calculation after Icona took over calculating the incentive compensation. (NMF No. 8; Pacheco Decl., ¶¶ 30 and 31.) Accordingly, the motion for summary adjudication is denied.
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Issue 4: Cross-Complainant's Fourth Cause of Action for Receipt of Stolen Property (Penal Code section 496) has no merit because it is barred by the applicable statute of limitations.

The parties do not dispute Neach's contention that this cause of action is barred by the 1-year statute of limitations.

Pacheco's cross-complaint seeks both treble damages and attorneys' fees under section 496, subdivision (c), which provides as follows, "Any person who has been injured by a violation of subdivision (a) or (b) may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney's fees." (Pen. Code, § 496, subd. (c).)

CCP section 338, subdivision (a) sets forth a 3-year statute of limitations for an action "upon a liability created by statute, other than a penalty or forfeiture." (Code Civ. Proc., § 338, subd. (a).) CCP section 340, subdivision (a) provides for a 1-year statute of limitations for an action "upon a statute for a penalty or forfeiture, if the action is given to an individual, or to an individual and the state, except if the statute imposing it prescribes a different limitation." (Code Civ. Proc., § 340, subd. (a).)

"Claims based upon statutes which provide for mandatory recovery of damages additional to actual losses incurred, such as treble damages, are considered penal in nature, and thus are governed by the one-year limitations period under section 340, subdivision 1." (Menefee v. Ostawari (1991) 228 Cal.App.3d 239, 243.) "Case law has consistently applied the one-year limitations period to statutes that provide for recovery of

actual damages and a mandatory additional penalty.” (Prudential Home Mortgage Co. v. Superior Court (1998) 66 Cal.App.4th 1236, 1242.) However, not all statutorily-provided recoveries are penalties or forfeitures. (Holland v. Nelson (1970) 5 Cal.App.3d 308, 312-313 [Finding Civil Code section 1812.62 that allowed the Court the option of granting treble damages is not to be construed as converting the statutory right of action into one for penal damages, and providing examples of when additional recovery did not constitute a penalty or forfeiture - Fair Labor Standards Act (29 U.S.C.A., s 216, subd. (b)), a veteran's action to recover treble damages for excess consideration charged for his home, and an action for treble damages under the Sherman Act.])

Section 496, subdivision (c) “was designed, not solely to deter theft, but also to provide a new civil remedy to those who have been injured by a violation of the statute.” (Siry Investment, L.P. v. Farkhondehpour (2022) 13 Cal.5th 333, 357.) Citing to Switzer v. Wood (2019) 35 Cal.App.5th 116, the California Supreme Court explained: The court in Switzer surmised that in light of the language chosen, the Legislature “apparently believed that any violation of section 496(a),” if proved, “would warrant the availability of treble damages.” (Switzer, supra, 35 Cal.App.5th at p. 130, 247 Cal.Rptr.3d 114.) The court explained: “The creation of an enhanced civil remedy for any person injured by the theft-related criminal offenses defined in the statute is certainly not absurd or unreasonable. Considering the nature of the offense described by the statute and the apparent goal of deterring such theft-related conduct, the provision, as literally written, of an enhanced civil remedy to ‘any person’ injured by that particular offense constituted a reasonable

	legislative policy decision. (Siry Investment, L.P. v. Farkhondehpour, 13 Cal.5th at 356-357.) The Switzer Court also noted that “while deterrence of theft was one of the goals of Senate Bill No. 1068, another purpose for the proposed legislation was expressly stated in the analysis provided by the Senate Committee on the Judiciary, under the heading ‘Purpose,’ which expressed that the bill's basic purpose was to ‘[e]stablish a civil remedy for persons who have been injured by another’s purchase, concealment, sale, or withholding of property where such person knows the property has been stolen.’ (Sen. Com. on Judiciary, Analysis of Sen. Bill No. 1068 (1972 Reg. Sess.) as amended June 26, 1972.)” (Switzer v. Wood (2019) 35 Cal.App.5th 116, 131-132.) The Court finds this cause of action is governed by the three-year statute of limitations. (See, Naftzger v. American Numismatic Society (1996) 42 Cal.App.4th 421, 433-434.) Regardless of which statute of limitations applies, Neach did not meet his initial burden to show when Pacheco knew or should have known about the allegedly improper allocation of expenses. Even if Neach met his initial burden, Pacheco raised a triable issue of material fact as to whether Neach had any involvement with the calculation of incentive compensation other than reviewing the calculation after Icona took over calculating the incentive compensation. (NMF No. 8; Pacheco Decl., ¶¶ 30 and 31.) Accordingly, the motion for summary adjudication is denied. Lastly, the Court notes Neach accurately contends Pacheco’s Opposition quotes language that does not exist, at least not in the cases that were cited.
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		(Reply, Pg. 5, fn. 3.) Pacheco shall be prepared to discuss in which published cases the quoted language may be found. If Pacheco cannot provide the citations, Pacheco shall be prepared to address how he came up with this language and the reference to these two cases. If the court decides to issue an order to show cause, a separate hearing will be set. Pacheco shall give notice.
56	<i>Off calendar</i>	
57	<i>Joel Orozco-Rivera v. Santa Ana Unified School District et al.</i>	Defendant Santa Ana Unified School District's ("Defendant SAUSD") motion for summary judgment is granted. Defendant SAUSD moves for summary judgment on Plaintiff Joel Orozco-Rivera's ("Plaintiff") complaint. Defendant SAUSD contends it is immune from liability under Education Code section 44808. (ROA 100 [Not. of Mot. at p. 2].) <i>Legal Standard</i> "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (Id. at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be

established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont Med. Center (2004) 117 Cal.App.4th 493, 510.)

Negligence Claims Against a School District

Plaintiff's (remaining) claims against Defendant SAUSD include negligence, negligent supervision, and negligent retention/hiring. (See ROA 2 [Complaint], 48 [12/13/24 Minute Order].) Plaintiff alleges Defendant SAUSD was negligent in its supervision of Plaintiff (by failing to keep co-defendant, Lee Dinnie Henry, away from Plaintiff), and in providing reasonable supervision and retention of Defendant Henry. (See Compl. at ¶¶ 40, 42-43, 71.)

A “school district and its employees have a special relationship with the district’s pupils[.]” (C.A. v. William S. Hart Union High School District (2012) 53 Cal.4th 861, 869.) However, a special relationship, alone, does not create liability for a school district because tort liability for governmental entities must be based on statute. (Guerrero v. South Bay Union School Dist. (2003) 114 Cal.App.4th 264, 268.)

Pursuant to Government Code section 815, subdivision (a), a public entity is not liable for an injury whether such injury arises out of an act or omission of the public entity or a public employee or any other person, except as otherwise provided by statute. (Gov. Code, § 815.) A public entity “is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov. Code, § 815.2, subd. (a).) A public employee “is liable for injury caused by his act or omission to the same extent as a private person.” (Gov. Code, § 820.) “Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability.” (Gov. Code, § 815.2, subd. (b).) “In other words, ‘the general rule is that an employee of a public entity is liable for his torts to the same extent as a private person (§ 820, subd. (a)) and the public entity is vicariously liable for any injury which its employee causes (§ 815.2, subd. (a)) to the same extent as a private employer (§ 815, subd. (b)).” (C.A. v. William S. Hart Union High School District (2012) 53 Cal.4th 861, 868, citation omitted.)

Where, as here, it is alleged that a school district's employee sexually abused a pupil, the school district is not vicariously liable for the alleged abuser's conduct, "because such conduct is not within the scope of employment." "However, 'the same school district may be held liable if its supervisory employees were negligent in hiring and supervising the abusive teacher and that negligence resulted in the student's harm.'" (O.B. v. Los Angeles Unified School Dist. (2025) 113 Cal.App.5th 930, 937, citation omitted.)

Defendant SAUSD contends, even assuming for the sake of argument that it was negligent in detecting, preventing or reporting the alleged abuse, it is immune from liability under Education Code section 44808.

Education Code section 44808 provides, in relevant part, that:

Notwithstanding any other provision of this code, no school district, city or county board of education, county superintendent of schools, or any officer or employee of such district or board shall be responsible or in any way liable for the conduct or safety of any pupil of the public schools at any time when such pupil is not on school property, unless such district, board, or person has undertaken to provide transportation for such pupil to and from the school premises, has undertaken a school-sponsored activity off the premises of such school, has otherwise specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances. (Ed. Code, § 44808.)

In other words, “section 44808 immunizes a school district from liability for off-campus harm to a student proximately caused by the district’s negligent acts unless the student was (or was supposed to be) under the district’s supervision or the district specifically assumed responsibility for the student. Put differently, a school district cannot be held liable for negligence that proximately causes off-campus harm when the student is no longer supposed to be under the district’s supervision.” (Vallejo City Unified School Dist. v. Superior Court (2025) 118 Cal.App.5th 139, 152.)

Here, the undisputed material facts (ROA 107) show:

- The first two instances of sexual abuse occurred during the summer of 2000, when Defendant Henry picked up Plaintiff from his house and they drove to Henry’s house. (UF nos. 1, 2).
- The third occasion of sexual contact occurred when Plaintiff called Defendant Henry to pick him up, and they went to Henry’s residence. (UF no. 4.)
- During Plaintiff’s senior year, he called Defendant Henry on “one or two occasions” and Henry picked Plaintiff up and took him to Henry’s home. (UF no. 6.)

Although Plaintiff claims there is a dispute as to facts 8, 9, and 10 (re: whether the alleged conduct occurred during transportation provided by Defendant SAUSD, or during school-sanctioned events when Plaintiff should have been supervised by SAUSD), the Court finds the evidence Plaintiff cites to does not support finding any genuine dispute as to these material facts. In sum, Defendant SAUSD has proffered evidence that

Plaintiff was not on school property, not utilizing District-provided transportation, and not at on off-campus, school-sponsored activity, when the alleged sexual abuse occurred. As such, Defendant has met its initial burden of showing that it is entitled to summary judgment on all claims against it, because it is entitled to immunity under Education Code section 44808.

The burden shifts to Plaintiff to show there is a triable issue of material fact. Plaintiff attempts to meet this showing by proffering evidence that Defendant SAUSD was on notice that Defendant Henry was spending time with certain students, due to a report being made by a district safety officer in or around 1993-1994 and, again, in the mid to late-1990s (i.e., about 7 years prior to Henry's abuse of Plaintiff). (ROA 107 [AMF nos. 6-14].) Plaintiff argues Defendant SAUSD is not immune under section 44808 for the "on-campus negligence" of supervisory personnel in failing to investigate or supervise Defendant Henry (or in retaining him), even if Plaintiff suffered an "off-campus injury." (ROA 109 [Opp'n at pp. 6-10.]

This argument is not persuasive, however, because multiple courts have rejected similar arguments based on a negligent hiring, supervision, or retention claim.

In *Mosley v. San Bernardino City Unified School Dist.*, the appellate court rejected the plaintiffs' theory that a school district was liable for the negligent hiring and supervision of a teacher who was driving a van (not during a school-sponsored activity) when a student fell out and hit her head. (*Mosley v. San Bernardino City Unified School Dist.* (2005) 134 Cal.App.4th 1260, 1262.) Although *Mosley* was not a sexual abuse case, *Mosley* reasoned (in dicta) that prior cases where sexual abuse plaintiffs had been permitted to proceed

under a theory of negligent hiring, supervision, or retention, the sexual abuse was alleged to have occurred “either at school or off school premises during an officially sanctioned school program.” (Id. at p. 1264.) In rejecting plaintiffs’ argument that the school knew or should have known of the teacher’s foreseeable risk of exposing student to harm, Mosley explained: “Third, and more importantly, Plaintiffs’ argument suggests that there is no action by a teacher for which a district would not be liable so long as it may be traced back to negligent hiring and supervision. We are unaware of any case law that extends such liability that far, nor are we inclined to do so.” (Id. at p. 1265.)

In *LeRoy v. Yarboi* (2021) 71 Cal.App.5th 737, the appellate court held that a school district was immune from liability for a student’s off-campus suicide, “while he was not and should not have been supervised by Respondents or any other [district] employee,” even assuming “they breached a duty they owed him.” (*LeRoy v. Yarboi* (2021) 71 Cal.App.5th 737, 744.) (This case is similar to *Vallejo City Unified School Dist. v. Superior Court* (2025) 118 Cal.App.5th 139.)

Lastly, where a school employee was alleged to have killed a student while the employee was babysitting the student during winter break, the immunity applied where there was no dispute that the student “died away from school property and when school was not in session” and that he did not die while the district was “transporting him to or from school or while he was participating in a school-sponsored activity.” (*Taylor v. Los Angeles Unified School Dist.* (2025) 112 Cal.App.5th 769, 774–775.) The plaintiff argued that the district was not immune from liability under section 44808, because “the negligence in hiring, supervising, or retaining [the teacher] occurred on

school property, and that negligence resulted in the off-campus harm to [the student].” (Id. at p. 775.) Citing Mosley, Taylor also rejected the plaintiff’s “expansive approach that would expose a school district to liability for any employee’s off-campus tort that could somehow be ‘traced back to negligent hiring and supervision,’” because such an interpretation would “run afoul of section 44808’s express purpose of limiting school district liability for harm that occurs to students when they are not on school property or engaged in school-sponsored or school-supervised activities.” (Id. at p. 776.)

Plaintiff’s reliance on C.A. v. William S. Hart Union High Sch. Dist. (2012) 53 Cal. 4th 861 (and its progeny) is misplaced, because they did not implicate the immunity under section 44808. In fact, Taylor expressly pointed out that the “negligent hiring liability” described in C.A. did not address the immunity under section 44808; and, that C.A. had “clearly stated its analysis was premised on the assumption that ‘no immunity provision applies.’” (Taylor, supra, 112 Cal.App.5th at p. 777.)

Likewise, Plaintiff’s reliance on Hoyem v. Manhattan Beach City Sch. Dist. (1978) 22 Cal.3d 508 and Perna v. Conejo Valley Unified School Dist. (1983) 143 Cal.App.3d 292, is misplaced. In Hoyem, the student suffered “an off-campus injury that occurred at a time when the school was supposed to be supervising the student.” Immunity under section 44808 does not apply, because it “withdraws immunity only when the student is or should be under the school’s direct supervision.” (Vallejo City Unified School Dist. v. Superior Court (2025) 118 Cal.App.5th 139, 151 [distinguishing Hoyem].) In Perna, the teacher was allegedly negligent in her dismissal, because she “kept the children after school to grade papers knowing that crossing guards would not be available and that

		the children would have to cross a busy street.” (Guerrero v. South Bay Union School Dist. (2003) 114 Cal.App.4th 264, 270 [distinguishing Perna].) Unlike in Hoyem or Perna, here, Plaintiff has not proffered any evidence that he should have been under Defendant SAUSD’s supervision when the sexual abuse occurred; or, that the alleged negligence had anything to do with being at school during hours when he should or should not have been there. For the foregoing reasons, the Court finds Defendant SAUSD is entitled to summary judgment on Plaintiff’s complaint. The alternative motion for summary adjudication is moot. Defendant SAUSD shall give notice of the ruling.
58	<i>Pinedo vs. CA KITCHEN FLOORS & BATHS, INC.</i>	Motion is off calendar. Case Management Conference remains on calendar.
59	<i>R & R Life is Amazing LLC vs. Daher</i>	Defendant Sibannac LLC’s motion for relief from the default entered against it on 3/11/25 is GRANTED. Defendant is to file his proposed answer no later than July 17, 2026. First, the court finds that the Sorrentino Declaration meets the requirements of an affidavit of fault such that relief is mandatory. Plaintiffs are awarded fees and costs of \$1,350. Alternatively, the court exercises its inherent equitable power to grant relief. Plaintiffs’ evidentiary objections are overruled.

Facts

On 11/15/2024, Plaintiffs filed a verified second amended complaint (“SAC”). [ROA #686.]

On 12/11/2024, Plaintiffs filed a doe amendment to name Sibannac, LLC as Doe Defendant number 9. [ROA No. 695.]

On 3/11/2025, Plaintiffs requested and obtained a default against Sibannac, LLC. [ROA #500.]

On 12/19/2025, the Court overruled in part and sustained in part K&A’s demurrer to Plaintiffs’ SAC with 20 days leave to amend as to some causes of action and without leave to amend as to other causes of action. [ROA #1014.] The Court ordered K&A to give notice.

Plaintiffs have not filed a third amended complaint. Defendant K&A has filed a motion to strike certain remaining portions of the SAC on the ground that Plaintiffs did not timely amend. [ROA # 1075.] A notice of the demurrer ruling is attached to this motion to strike. [Id., Ex. A.]

On 1/7/26 – well after default was entered, Plaintiff filed a notice of claim for punitive damages against Sibannac. [ROA #1028.] No proof of service is attached.

On 1/29/26, Defendant Sibannac filed the pending motion for relief.

Defendant seeks relief under Code of Civil Procedure section 473(b), on the ground of mistake, inadvertence, and/or excusable neglect, but also points to equity. Defendant also contends the request for entry of default was improperly served on it and it never received it.

Plaintiff and his counsel were surprised by the entry of default because the understanding was that the case was settled – Plaintiffs reneged on the settlement at the last minute. Further, despite her ethical obligations, Plaintiffs’ counsel gave Defendant’s counsel no notice of her intent to seek a default. [Sorrentino Declaration (ROA #1066), ¶¶ 3-23.]

Plaintiffs dispute that there were settlement discussions in March or April 2025. [Dibs Decl. (ROA #1180), ¶¶ 17-18.]

Legal Standard

The law favors a trial on the merits, and doubts in applying Code Civ. Proc. § 473 are resolved in favor of the party seeking relief from default. *Iott v. Franklin* (1988) 206 Cal.App.3d 521, 526. If a party moves promptly for default relief, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), only slight evidence will justify an order granting such relief. *Ibid.* For this reason, “a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.” *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 696 (citations omitted).

The most fundamental of those principles is that affirmed in *Au–Yang v. Barton* (1999) 21 Cal.4th 958, 963, 90 Cal.Rptr.2d 227, 987 P.2d 697: “‘[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.’” (*Ibid.*, Citing among other cases, *Weitz v. Yankosky* (1966) 63 Cal.2d 849, 855, 48 Cal.Rptr. 620, 409 P.2d 700 (*Weitz*).) *Id.*

A plaintiff's counsel is required to notify the defendant's counsel, if known, prior to taking the defendant's default. *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 701–702 (reversing order denying relief from default); *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 137 (reversing order denying relief from default); *Shapell Social Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 84 Cal.App.5th 166, 213–214 (reversing order denying relief from default).

Code Civ. Proc. § 473(b)

Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” Generally, there are two avenues to such relief under Code Civ. Proc. § 473(b). *Leader v. Health Industries of Am., Inc.*, 89 Cal.App.4th 603, 615 (2001). First, a court may grant discretionary relief upon the moving party's showing of mistake, inadvertence, surprise or excusable neglect. *Id.* at 615-616. Second, where the defaulting party's attorney files an attorney affidavit of fault the relief is mandatory. *Id.*

A motion seeking discretionary relief under Section 473(b) **must be brought within 6 months** of entry of default and/or default judgment sought be vacated. Cal. Civ. Proc. Code § 473(b).

Where there is an attorney affidavit of fault, however, relief is mandatory and the deadline to file a motion for relief as to either a default or default judgment does not even begin to run until a default judgment is entered. Code Civ. Proc. §473(b); *Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 296–297.

No default judgment has been entered against Defendant in this case. See Cal. Prac. Guide Civ. Pro. Before Trial § 5:305.2 (“If no default judgment has been entered, there appears to be no time limit on a motion for relief based on an attorney affidavit of fault.”)

Court’s Equitable Power

Apart from any statutory authority, a court has inherent, equitable power to set aside a judgment on the ground of “extrinsic fraud or mistake.”

Olivera v. Grace (1942) 19 Cal. 2d 570, 576. There are three essential requirements to obtain relief.

The party in default must show:

- a meritorious defense;
- a satisfactory excuse for not presenting a defense to the original action; and
- diligence in seeking to set aside the default once it was discovered. Rappleyea v. Campbell (1994) 8 Cal. 4th 975, 982.

A motion to vacate a default or dismissal that is made more than six months after entry of default can be made on the ground that a court has the inherent equitable power to grant such relief where there has been extrinsic fraud or mistake. Orange Empire Nat. Bank v. Kirk, 259 Cal.App.3d 347, 352-53 (1968); Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 30; Estate of Sanders (1985) 40 Cal.3d 607, 614, citing United States v. Throckmorton (1878) 98 U.S. 61, 65–66.

Discussion

Here, Defendant did not file its motion for relief within 6 months of the 3/11/25 entry of default. As a result, Defendant cannot obtain discretionary relief under Code of Civil Procedure section 473(b). But relief is available both as mandatory relief under section 473(b) and under the court’s inherent, equitable powers.

First, the court deems the Sorrentino Declaration as counsel's affidavit of fault. Sorrentino's explanation that they were operating under an "informal" stay due to settlement negotiations is an explanation as to why he failed to file a timely response to the SAC. [Sorrentino Decl., ¶¶ 7-9.] With attorney fault, the neglect or mistake need not be excusable. *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 770 (bold added). As long as the default resulted from attorney neglect, the attorney's "affidavit of fault" compels relief from both the default and any resulting default judgment. See *Cisneros v. Vuevo* (1995) 37 Cal.App.4th 906, 909 fn. 2.

Upon a finding of an attorney affidavit of fault, relief is mandatory. Defendant has submitted a proposed answer. [Sorrentino Decl., Ex. R.] The provision for mandatory relief also requires the court to award reasonable fees and costs to the opposing party. Plaintiffs' counsel has filed a declaration describing the fees incurred. The court has reviewed this and made its award as noted above.

Second, the court exercises its equitable powers based on Defendant's and his counsel's extrinsic mistake in relying on an informal stay and representations of settlement negotiations in not filing an answer to the SAC. [Sorrentino Decl., ¶¶ 7-9; Andry Decl. (ROA #1062), ¶¶ 7-8.] Similarly, Plaintiff has shown a meritorious defense not previously presented due to reliance on the settlement negotiations – which also explain why the motion was not brought earlier. [Id., and Sorrentino Decl., Ex. R.]

Accordingly, the motion for relief from the entry of default is granted.

60	<i>The Regents of the University of California, UCI Irvine Medical Center v. Kaiser Foundation Health Plan, Inc.</i>	RULING ON MOTION #1: The general demurrers of defendant Kaiser Foundation Health Plan, Inc., to the first, second, third, and fifth causes of action in the complaint of plaintiffs The Regents of the University of California, UC Irvine Medical Center, UCI Health Fountain Valley, UCI Health Lakewood, UCI Health Los Alamitos, and UCI Health Placentia Linda are SUSTAINED with 20 days leave to amend. Plaintiffs The Regents of the University of California, UC Irvine Medical Center, UCI Health Fountain Valley, UCI Health Lakewood, UCI Health Los Alamitos, and UCI Health Placentia Linda have brought this action against defendant Kaiser Foundation Health Plan, Inc., for its alleged failure to fully reimburse them for medically necessary and physician ordered services provided to patients who were members of defendant's health plan. (See complaint, ROA 2, ¶ 26.) Their complaint contains causes of action for: (1) breach of implied-in-law contract; (2) breach of implied-in-fact contract; (3) unfair business practices; (4) quantum meruit; and (5) unjust enrichment. Defendant demurs generally to all but the fourth cause of action for quantum meruit. Plaintiffs oppose the demurrers to the second and third causes of action only. Therefore, the Court sustains the demurrers to the first and fifth causes of action with 20 days leave to amend. <u>Second cause of action for breach of implied-in-fact contract.</u> The elements of a cause of action for breach of oral contract are: (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach. Aton
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Center, Inc. v. United Healthcare Ins. Co. (2023) 93 Cal.App.5th 1214, 1230. A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct. Ibid. Both an express and an implied contract are identical in that they require a meeting of the minds or an agreement; they differ in the mode of proof by which they are established. Ibid.

The essential elements of a contract are: parties capable of contracting; their consent; a lawful object; and a sufficient cause or consideration. Aton Center, Inc. v. United Healthcare Ins. Co., supra, 93 Cal.App.5th at p. 1230. The vital elements of a cause of action based on contract are mutual assent (usually accomplished through the medium of an offer and acceptance) and consideration. Ibid.

Contract formation requires mutual consent, which cannot exist unless the parties agree upon the same thing in the same sense. Aton Center, Inc. v. United Healthcare Ins. Co., supra, 93 Cal.App.5th at p. 1230. Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. Ibid. The question is what the parties' objective manifestations of agreement or objective expressions of intent would lead a reasonable person to believe. Ibid.

Although plaintiffs allege that mutual assent for defendant to “fully pay for the services provided to [defendant’s plan members]” was shown by “[t]he verifications, authorizations, and communications provided by [defendant] to [plaintiffs]” (complaint, ¶ 53), defendant contends that such mutual assent

	never occurred because the parties never discussed fees or price, let alone agreed on them. In the opposition, plaintiffs contend that this does not matter because the price term is provided by law, i.e., under the Knox-Keene Act and regulations, and is the “reasonable and customary value for those services, citing Children’s Hospital Cent. Cal. v. Blue Cross of California (2014) 226 Cal.App.4th 1260, 1274. Plaintiffs’ reliance on Children’s Hospital Cent. Cal. v. Blue Cross of California, supra, 226 Cal.App.4th at p. 1274 is misplaced. Although the case confirms that the regulations direct a noncontracted party to pay the reasonable and customary value of their services, it states that this directive “embodies the concept of quantum meruit.” The case further states: “Quantum meruit refers to the well-established principle that ‘the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered.’ ” [Citation.] The measure of recovery in quantum meruit is the reasonable value of the services, provided they were of direct benefit to the defendant. [Citation.] The burden is on the person making the quantum meruit claim to show the value of the services. [Citation.] Children’s Hospital Cent. Cal. v. Blue Cross of California, supra, 226 Cal.App.4th at p.1274. The more recent case of Allied Anesthesia Medical Group, Inc. v. Inland Empire Health Plan (2022) 80 Cal.App.5th 794, 810, which is cited by defendants in the moving and reply papers, is more on point. It specifically rejected the argument being made by plaintiffs here, stating:
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We reject plaintiffs' claim that they need not plead a "meeting of the minds" on the rate at which they would be compensated because they are not demanding payment above the rate set by regulation 1300.71. [Citation.] To do otherwise would allow plaintiffs to play fast and loose with their theories of liability. A claim for breach of an implied-in-fact contract requires plaintiffs to plead the agreed-upon rate. Otherwise, their allegations amount to a claim for quantum meruit in which they seek to recover the shortfall in the amount of their reimbursement based on the belief that the rate at which they were paid is below the reasonable and customary value of the services they provided. [Citation.]

Based on this legal authority, the cause of action for breach of implied-in-fact contract is deficient. The demurrer to the second cause of action is sustained with 20 days leave to amend.

Third cause of action for violation of the UCL.

Business and Professions Code section 17200 et seq. prohibits unfair competition, including unlawful, unfair, and fraudulent business acts. *Aton Center, Inc. v. United Healthcare Ins. Co.*, supra, 93 Cal.App.5th 1216, 1247. The UCL covers a wide range of conduct and embraces anything that can properly be called a business practice and that at the same time is forbidden by law. *Ibid.* The UCL is written in the disjunctive and establishes three varieties of unfair competition, i.e., acts or practices which are unlawful, or unfair, or fraudulent. *Id.* at p. 1248. An act can be alleged to violate any or all of the three prongs of the UCL—unlawful, unfair, or fraudulent. *Ibid.*

Only equitable relief can be obtained under the UCL; damages are not recoverable. *Aton Center, Inc. v. United Healthcare Ins. Co.*, supra, 93 Cal.App.5th 1216, 1247. Moreover, a plaintiff may only seek equitable relief under California's UCL where he or she has no adequate remedy at law. *Moss v. Infinity Ins. Co.* (N.D. Cal. 2016) 197 F.Supp.3d 1191, 1203. Where the plaintiff can seek money damages if he or she prevails on claims for breach of contract or breach of the implied covenant of good faith and fair dealing, he or she has an adequate remedy at law. *Ibid.* This is true even if all of the plaintiff's non-UCL claims ultimately fail. *Ibid.*

Here, after alleging that defendant engaged in unlawful, unfair, or fraudulent conduct, plaintiffs allege:

As a direct and proximate result of [defendant's] wrongful acts, [plaintiffs] have suffered and will continue to suffer substantial pecuniary losses and irreparable injury-in-fact. Under California Business & Professions Code § 17200, said violations render [defendant] liable to the [plaintiffs] for injunctive relief as ordered by this court as necessary to restore to the [plaintiffs] all money which [defendant] acquired by means of such unfair business practices in an amount according to proof as trial.

(Complaint, ¶ 62.)

Defendant essentially contends that the request for injunctive relief is illusory and does not amount to anything more than a claim in quantum meruit, citing *Long Beach Memorial Medical Center v. Kaiser Foundation Health Plan, Inc.* (2021) 71 Cal.App.5th 323, 343. Plaintiffs disagree,

	contending that defendant’s cited authority is distinguishable because injunctive relief sought in that case related to payments in the future and they are really seeking disgorgement or restitution of money retained by defendant. In fact, Long Beach Memorial Medical Center v. Kaiser Foundation Health Plan, Inc., supra, 71 Cal.App.5th 323, 343 stated that the healthcare providers there sought injunctive relief enjoining the defendant from violating the Knox-Keene Act by underpaying for emergency medical services in the future and that such relief was unavailable because defendant could not determine the reasonable and customary value of the services rendered until that amount was determined by a jury. The court stated that the plaintiffs could properly seek restitution for defendant’s violation of its duty under the Knox-Keene Act “to reimburse them for the ‘reasonable and customary value’ of the emergency medical services they provided to [defendant’s] enrollees, but that restitutionary award is indistinguishable from the award they would receive through their quantum meruit claim.” Ibid. The demurrer to the third cause of action is sustained with 20 days leave to amend. Counsel for the parties are reminded and directed to follow the Code of Civil Procedure and California Rules of Court when drafting and submitting pleadings and documents. For example, a demurrer should comply with CRC 3.1320(a) by setting forth each ground of the demurrer and indicating whether the ground applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses. Argument properly belongs in the supporting memorandum of points and authorities. See CRC 3.1113(b).
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		RULING ON MOTION #2: To the extent that the motion to strike is not mooted by the ruling on the demurrer, it is denied for failure to comply with CRC 3.1322(a). (“A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.”) Defendant is to provide notice of both rulings.
61	<i>Vasquez vs. American Honda Motor Company, Inc.</i>	Defendant American Honda Motor Company, Inc.’s motion to compel plaintiff Jesse Vasquez to appear for deposition pursuant to Code of Civil Procedure section 2025.450 is DENIED, except that Plaintiff is ordered to provide within 30 days of the notice of ruling, four alternative dates within the next 60 days for the Plaintiff’s deposition. Code of Civil Procedure section 2025.450 provides that a party noticing a deposition “may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice” if, “after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” Code Civ. Proc. § 2025.450(a). Pursuant to Code of Civil Procedure section 2025.410, subdivision (a), a party “served with a

	deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.” Code of Civil Procedure section 2025.450, subdivision (a) does not appear to apply here because Plaintiff served written objections pursuant to Code of Civil Procedure section 2025.410, subdivision (a). Defendant has not argued or shown that the objection served was not valid. Moreover, on the record presented it looks like the deposition did not go forward – so Plaintiff did not fail to appear for examination. Nonetheless, recognizing that the parties need some direction, the court orders Plaintiff to provide within 30 days of the notice of ruling, four alternative dates within the next 60 days for the Plaintiff’s deposition. The motion is otherwise denied. In the absence of an applicable statute, there is no provision for sanctions under the statutes cited in Defendant’s notice of motion and supporting memorandum. Defendant is to provide notice of this ruling.
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